



DEPARTMENT OF LAW

Administrator-Uniform Consumer Credit Code and Commission on Consumer Credit

UNIFORM DEBT-MANAGEMENT SERVICES ACT RULES

4 CCR 902-2

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Rule 1 Fee Schedule

The fees for debt management service providers shall be those listed below.

Registration fees are payable by fiscal year from July 1 to June 30. Registration fees are not pro-rated for part of a year nor are they refundable. Registration fees are assessed per provider, rather than per business location.

Fee	Amount
Initial Registration Fee [§ 5-19-205]	\$1,000/fiscal year
Renewal Registration Fee [§ 5-19-211]	\$1,000/fiscal year
Examination Fee [§ 5-19-232]	\$60/hour plus reasonable and actual travel costs

Rule 2 Adjustment of Dollar Amounts – Consumer Price Index

- (a) The base year for adjustment of dollar amounts to reflect inflation shall be the 2007 Consumer Price Index for all Urban Consumers (CPI-U), U.S. City Average, 1982-84 = 100, All Items, Annual data (not seasonally adjusted) issued by the United States Bureau of Labor and Statistics. If the CPI-U is revised after 2007, the percentage of change shall be calculated on the basis of the revised index.

Rule 3 Insurance Cancellation Notice

- (a) Any insurance policy submitted by a provider as evidence of insurance required by § 12-14.5-205(b)(4), C.R.S. shall include the insurer's written agreement to provide the Administrator with written notice of termination or reduction of the policy. On or before July 30, 2008, providers that previously submitted insurance policies shall supplement the policy by filing with the Administrator the insurer's written agreement to provide written notice of termination or reduction.
- (b) The written notice of termination or reduction of the policy shall be sent by certified U.S. mail to the Administrator, Uniform Consumer Credit Code, 1525 Sherman St., 7th Floor, Denver, CO 80203, or the most current address for the Administrator.
- (c) The insurer's termination or reduction of liability shall be effective from and after the expiration of thirty days from the Administrator's receipt of such written notice or on such later date as is stated in the written notice. The insurer's termination or reduction of liability shall not affect, reduce, or release its liability for any acts or practices that occurred during the time the policy was in force and prior to the effective date of termination or reduction of the policy.

Rule 4. Fees Charged to Consumers for Debt-Management Services

- (a) A provider may not request or receive payment of any fee or consideration until and unless:
1. The fee or consideration either: Bears the same proportional relationship to the total fee for settling the terms of the entire debt balance as the individual debt amount bears to the entire debt amount, in which case the individual debt amount and the entire debt amount are those owed at the time the debt was enrolled in the service; or is a percentage of the amount saved as a result of the settlement. The percentage charged cannot change from one individual debt to another. The amount saved is the difference between the amount owed at the time the debt was enrolled in the plan and the amount actually paid to satisfy the debt.
- (b) Except as otherwise provided section 5-19-228 (d), if an individual does not assent to an agreement, a provider may receive for educational and counseling services it provides to the individual a fee not exceeding one hundred dollars or, with the approval of the administrator, a larger fee. The administrator may approve a fee larger than one hundred dollars if the nature and extent of the educational and counseling services warrant the larger fee.
1. If, before the expiration of ninety days after the completion or termination of educational or counseling services, an individual assents to an agreement, the provider shall refund to the individual any fee paid pursuant to subsection (d)(4) of this section.

Editor's Notes

History

New rule eff. 03/30/2008.

Rules 2, 3 eff. 07/30/2008.

Rule 4 eff. 03/30/2025.